



Appeal Decision

Site visit made on 18 May 2026

by Laura Bartle BA(Hons) MSc MRTPI

an Inspector appointed by the Secretary of State

Decision date: 11 September 2026

Appeal Ref: 6005877

Land Off Bolshaw Farm Lane, Heald Green, Cheadle, Cheshire East SK8 3JZ

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant permission in principle.
 - The appeal is made by Mr Aiman Salama against the decision of Cheshire East Council.
 - The application Ref is 25/0958/PIP.
 - The development proposed is permission in principle of up to 6no. dwellings.
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Decision

1. The appeal is allowed and permission in principle is granted only for the part of the development situated within the administrative area of Cheshire East Council for residential development comprising a minimum of one dwelling and a maximum of six dwellings at land off Bolshaw Farm Lane, SK8 8JZ in accordance with the terms of the application, Ref 25/0958/PIP, dated 11 March 2025.

Preliminary Matters

2. The proposal is for permission in principle. Planning Practice Guidance (PPG) advises that this is an alternative way of obtaining planning permission for housing-led development. The permission in principle consent route has two stages: the first stage (or permission in principle stage) establishes whether a site is suitable in-principle and the second ('technical details consent') stage is when the detailed development proposals are assessed. This appeal relates to the first of these two stages.
3. The scope of the considerations for permission in principle is limited to location, land use and the amount of development permitted¹. All other matters are considered as part of a subsequent technical details consent application if permission in principle is granted. I have determined the appeal accordingly.
4. The PPG² also advises that, for housing-led development, the amount of development should be expressed as a minimum and maximum number of dwellings. In this case, the application seeks permission in principle for "up to 6 dwellings" and specifies only a maximum amount of development. Nevertheless, the Council determined the application on that basis, and the appeal has proceeded on the same understanding. In the circumstances, I have determined the appeal on the basis of residential development comprising a minimum of one dwelling and a maximum of six dwellings.

¹ PPG Paragraph: 012 Reference ID: 58-012-20180615

² PPG Paragraph: 052 Reference ID: 58-052-20180615

5. A plan showing how the development could be laid out is before me. However, as this appeal does not relate to technical details, I have taken the submitted plan to be illustrative only.
6. For clarity, I have added the words "Heald Green, Cheadle, Cheshire East" to the site address in the heading of this decision in order to more accurately identify the location of the appeal site.
7. The appeal site lies predominantly within the administrative area of Cheshire East Council (CEC). However, a very small part of the appeal site extends into the neighbouring authority area of Stockport Metropolitan Borough Council (SMBC). No corresponding planning application was submitted to SMBC in respect of the land within its administrative area.
8. Each local planning authority is empowered to determine planning applications only in respect of land within its own administrative boundary. Accordingly, the appeal before me can only relate to the land situated within Cheshire East, being the land to which the Council's decision relates. Whilst the submitted plans show land extending into Stockport, no determination has been made, nor could one be made in these proceedings, in respect of that part of the site. I have therefore considered the proposal on the basis that any decision on this appeal would apply only to the land within Cheshire East's administrative boundary.
9. During the course of the appeal, a revised National Planning Policy Framework (the Framework) was published on 17 August 2026. The main parties were given an opportunity to comment on the implications of the revised Framework for the appeal, and I have taken those comments into account in reaching my decision. References to the Framework in my decision are to the August 2026 version.

Main Issue

10. The main issue is whether the site would be suitable for housing development having regard to its location, the proposed land use and the amount of development.

Reasons

11. It is not disputed that, subject to detailed consideration at the technical details consent stage, the site is capable of accommodating up to six dwellings. However, the site lies within the Green Belt. Policy PG3 of the Cheshire East Local Plan Strategy (CELPs) seeks to restrict development within the Green Belt. It states that development in the Green Belt is inappropriate save for identified exceptions. The exceptions do not apply to the proposal.
12. However, Policy PG3 predates the revised Green Belt provisions now contained within the Framework and does not reflect the concept of grey belt land or the exceptions now found in Policy GB7 of the Framework. Consequently, whilst Policy PG3 remains part of the development plan, I attach very limited weight to the policy conflict in accordance with Annex A of the Framework.
13. Policy GB6 of the Framework states that development within the Green Belt is inappropriate unless it falls within one of the categories set out in Policy GB7. Policy GB7(g) provides that development is not inappropriate where: it would utilise grey belt land; would not fundamentally undermine the purposes of the remaining Green Belt across the plan area; there is an evidenced unmet need for

the type of development proposed; the development would be in a sustainable location; and, where applicable, it complies with Policy GB8.

14. The Framework defines grey belt land as land in the Green Belt, comprising previously developed land and/or any other land that does not strongly contribute to purposes (a), (b), or (d) in Policy GB2.
15. The appeal site forms a parcel of land located between the built-up edge of Heald Green and the farm redevelopment off Bolshaw Farm Lane. Expansive agricultural structures are located beyond the field immediately to the west.
16. Although the site is undeveloped, it is physically enclosed by development and infrastructure along the majority of its boundaries. I find that development of up to six dwellings would not materially affect the visual or functional containment of the site. Equally, and regardless of where the local authority boundaries lie, substantial separation would remain between Heald Green and Handforth, with intervening open land and the Manchester Airport Relief Road continuing to provide a clear physical break between the settlements.
17. The site does not therefore strongly contribute to Green Belt purposes relating to unrestricted sprawl or settlement merging. Furthermore, there is no evidence that it contributes to the setting or special character of a historic town. I therefore conclude that the site comprises grey belt land for the purposes of the Framework.
18. The main parties agree that development of this limited and well-contained site would not fundamentally undermine the purposes of the remaining Green Belt across the plan area. Accordingly, the requirement in Policy GB7(g)(i) is satisfied.
19. The Council's most recent five-year housing land supply evidence indicates a shortfall of deliverable housing sites. In those circumstances I am satisfied that there is an evidenced unmet need for housing and that the proposal would make a modest contribution towards meeting that need. The requirement of Policy GB7(g)(ii) is therefore met.
20. Turning to sustainability, the site adjoins the built-up area of Heald Green and benefits from access to good pedestrian infrastructure connecting it to some day-to-day services and facilities. The proposed development would therefore satisfy the access requirements of Policy SD 1 of the CELPS.
21. Although not all facilities lie within the distances referred to in the supporting text to Policy SD 2 of the CELPS, future occupiers would have reasonable access to shops, education facilities, public transport options and other services. Taking the evidence as a whole and having particular regard to the sustainable location requirements now referenced in Policy TR3 of the Framework, I find that the site occupies a sustainable location.
22. The major development provisions of Policy GB8 do not apply in this case. Drawing matters together, I conclude that the proposal satisfies all the requirements of Policy GB7(g) of the Framework. Consequently, the proposed development would not constitute inappropriate development in the Green Belt and should not be regarded as harmful to the Green Belt or required to demonstrate very special circumstances.
23. Policy H1 of the Handforth Neighbourhood Plan (HNP) requires development proposed within the Green Belt to be acceptable in planning terms. In light of my

findings above, the proposal would be consistent with that policy. Given the scale of development proposed, there is no substantive evidence before me that the proposal would give rise to significant highway impacts. Consequently, nothing before me indicates conflict with Policy 18 of the HNP.

24. I therefore conclude that the location, land use and amount of development are acceptable in principle.

Other Matters

25. I have had regard to the comments made by interested parties on various matters including construction management, flood risk and water management, trees, ecology and biodiversity, infrastructure and highways impact. However, as set out in the preliminary matters, my assessment is confined to matters relevant to an application for permission in principle.

Planning Balance and Conclusion

26. I have found that the proposed development would not be inappropriate development in the Green Belt. Accordingly, Policy S5(5) of the Framework is engaged.
27. The proposal would contribute to housing delivery in a reasonably sustainable location. These benefits attract moderate weight in favour of the proposal. I have not identified any adverse effects that would substantially outweigh those benefits. Consequently, the presumption in favour of sustainable development, as set out in Policy S3 of the Framework, applies.
28. Having regard to the development plan as a whole and all other material considerations, including the Framework, I conclude that the appeal should be allowed.

Laura Bartle

INSPECTOR